

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MARQUITA EVANS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CARAVANA, SHIELD NO. 4908, NYPD
POLICE OFFICER DEAN PEREZ, SHIELD NO. 4494,
NYPD POLICE OFFICER HARRY CRUZ, SHIELD NO.
17669, NYPD SERGEANT JAMES ROBINSON,
SHIELD NO. 1392, and NYPD POLICE OFFICERS
JOHN AND JANE DOES NUMBERS ONE THROUGH
TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

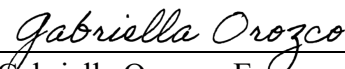
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 16, 2023

Yours, etc.



Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD POLICE OFFICER ANTHONY CARAVANA, SHIELD NO. 4908, 63rd Precinct,
1844 Brooklyn Avenue, Brooklyn, NY 11210

NYPD POLICE OFFICER DEAN PEREZ, SHIELD NO. 4494, 63rd Precinct, 1844
Brooklyn Avenue, Brooklyn, NY 11210

NYPD POLICE OFFICER HARRY CRUZ, SHIELD NO. 17669, 63rd Precinct, 1844
Brooklyn Avenue, Brooklyn, NY 11210

NYPD SERGEANT JAMES ROBINSON, SHIELD NO. 1392, 63rd Precinct, 1844
Brooklyn Avenue, Brooklyn, NY 11210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARQUITA EVANS

Plaintiff,

INDEX NO.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CARAVANA, SHIELD NO. 4908, NYPD
POLICE OFFICER DEAN PEREZ, SHIELD NO. 4494,
NYPD POLICE OFFICER HARRY CRUZ, SHIELD NO.
17669, NYPD SERGEANT JAMES ROBINSON,
SHIELD NO. 1392, and NYPD POLICE OFFICERS
JOHN AND JANE DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X
Plaintiff **MARQUITA EVANS**, by her attorneys, Shulman-Hill, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about November 15, 2022, at approximately 5:30 p.m., while lawfully in the vicinity of 1157 East 53rd Street, County of Kings, State of New York, plaintiff was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant police officers. In doing so, defendant officers caused serious physical and emotional injuries to Plaintiff. Plaintiff was deprived of her constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff **MARQUITA EVANS** is a resident of the State of New York.

3. NYPD Police Officer Anthony Caravana, Shield No. 4908 is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Anthony Caravana, Shield No. 4908 is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, NYPD Police Officer Anthony Caravana, Shield No. 4908 was assigned to the 63rd Police Precinct of the NYPD.

6. NYPD Police Officer Dean Perez, Shield No. 4494 is and was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Police Officer Dean Perez, Shield No. 4494 is being sued in their individual and official capacity.

8. Currently and at all times relevant herein, NYPD Police Officer Dean Perez, Shield No. 4494 was assigned to the 63rd Police Precinct of the NYPD.

9. NYPD Police Officer Harry Cruz, Shield No. 1766 is and was at all times relevant herein an Officer with the New York City Police Department.

10. NYPD Police Officer Harry Cruz, Shield No. 1766 is being sued in their individual and official capacity.

11. Currently and at all times relevant herein, NYPD Police Officer Harry Cruz, Shield No. 1766 was assigned to the 63rd Police Precinct of the NYPD.

12. NYPD Sergeant James Robinson, Shield No. 1392 is and was at all times relevant herein an Officer with the New York City Police Department.

13. NYPD Sergeant James Robinson, Shield No. 1392 is being sued in their individual and official capacity.

14. Currently and at all times relevant herein, NYPD Sergeant James Robinson, Shield No. 1392 was assigned to the 63rd Police Precinct of the NYPD.

15. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 23, 2023.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On or about November 15, 2022, at approximately 5:30 p.m., while lawfully in the vicinity of 1157 East 53rd Street, County of Kings, State of New York, the Defendant police officers unlawfully arrested Plaintiff without legal justification.

25. Around the above time, Plaintiff was at home when she received a call from her partner that he was being arrested nearby and that the officers were becoming increasingly aggressive.

26. Plaintiff, with her mother, ran to the scene and, from the sidewalk, began to record the interaction between the defendant officers and her partner that was occurring in the street.

27. Defendant officer Anthony Caravana approached Plaintiff, who was standing several feet away from the vehicle her partner was driving and her partner, and told her to not touch the car and to stop recording.

28. At no point during the entire interaction did Plaintiff touch the vehicle.

29. When Plaintiff did not stop recording, defendant officer Anthony Caravana shoved Plaintiff in her chest, using both hands to grope Plaintiff's breasts.

30. After Plaintiff verbally expressed frustration at the defendant officers' actions, Defendant Caravana punched Plaintiff in the face and took her to the ground, with one or more other defendant officers.

31. At no point did the Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

32. Plaintiff did not resist arrest.

33. Plaintiff was placed in the back of an NYPD vehicle and transported to the 63rd Precinct against her will.

34. Upon her arrival to the 63rd Precinct, Plaintiff was placed in a holding room where she was unlawfully searched, fingerprinted, and photographed.

35. While at the 63rd Precinct, Plaintiff told defendant officers that she was in pain and needed medical attention.

36. After a few hours, defendant officers transported the Plaintiff to Mt Sinai Hospital where she was treated for a fractured left middle finger, a facial contusion and a right knee abrasion.

37. While in custody, the defendant officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

38. Specifically, the Defendant officers falsely stated to the Kings County District Attorney's Office that Plaintiff was arrested for disorderly conduct and resisting arrest.

39. Plaintiff was held in unlawful custody, at the 63rd Precinct and Central Booking, for approximately forty eight (48) hours.

40. The false charges against Plaintiff were dismissed and sealed in their entirety on February 1, 2023.

41. Plaintiff continues to suffer physical and emotional trauma and distress from the actions of defendant officers complained of above.

42. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to

prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

43. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

44. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

45. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, physical and psychological injuries.

SECOND CAUSE OF ACTION

False Imprisonment

47. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional, physical and psychological injuries.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

52. The use of excessive force by defendants by, amongst other things, seizing, tightly handcuffing him, and strip searching him constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION

Failure to Intervene

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

54. The defendants that did not physically touch Plaintiff, but were present when other officers knowingly violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

55. Defendants failed to intervene to prevent the unlawful conduct described herein.

56. As a result of the foregoing, Plaintiff suffered significant mental, physical and emotional injuries, her liberty was restricted for an extended period of time, he was put in fear for her safety, and she was humiliated and subject to other physical constraints.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, physical and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

59. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

64. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

SIXTH CAUSE OF ACTION

42 U.S.C. 1983 and State Law Malicious Prosecution

65. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

66. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

67. Defendants commenced and continued a criminal proceeding against Plaintiff.

68. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

69. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

70. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

72. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in

her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

73. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately forty eight (48) hours in total.

74. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

75. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

76. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

77. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

78. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

80. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

81. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

83. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

84. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

85. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure. forty eight (48) hours in total

86. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately forty eight (48) hours in total.

87. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer’s Liability for Defendant Officer’s Failure to Intervene in Violation of Plaintiff’s AC 8-802 Rights

88. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

90. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

91. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

92. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be

secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

93. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

94. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

95. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

96. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

97. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

98. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

99. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

100. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

101. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 16, 2023

By: *Gabriella Orozco*
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

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Brooklyn Avenue, Brooklyn, NY 11210

ATTORNEY'S VERIFICATION

GABRIELLA OROZCO, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 16, 2023



GABRIELLA OROZCO